

25NWCV04450 25NWCV04450

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-07

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Case Number: 25NWCV04450 Hearing Date: August 7, 2026 Dept: P

CANSLER v. ARTESIA

COMMUNITY HEALTHCARE, LLC, ET AL.

CASE NO.: 25NWCV04450

HEARING: 08/07/2026 @

9:30 AM

#11

TENTATIVE ORDER

Petitioner Corey Cansler's petition for approval of compromise of claim is CONTINUED to Friday, September 11, 2026 at 9:30 AM in Dept. P.

Moving party to give notice.

Petitioner Corey Cansler (Petitioner), Guardian ad Litem for Claimant Brenda Cansler (Claimant), moves for approval of compromise of claim.

Background

On December 16, 2025, Plaintiff Brenda Cansler, by and through her Guardian ad Litem Corey Cansler filed this action against Defendants Artesia Community Healthcare, LLC dba Artesia Palms Care Center (Artesia Palms); PACS Group, Inc.; and Does 1-25 (collectively, Defendants). The complaint alleges that Plaintiff, aged 74, was admitted to Artesia Palms on March 25,

2025 for skilled nursing care and management of her psychiatric symptoms. (Complaint, ¶¶ 19, 24.) Despite Defendants' awareness of Plaintiff's risks of elopement and wandering, on May 18, 2025, Plaintiff and another resident left the facility and remained missing for a 27-hour period. (Complaint, ¶¶ 29-31.) The complaint alleges the CDPH conducted an investigation into the elopement episode and determined it was an "an Immediate Jeopardy (IJ) situation," a situation in which a facility's non-compliance with a regulation caused serious harm or impairment, to a resident. (Complaint, ¶ 38.) The complaint asserts two causes of action: (1) negligence and (2) violation of patient's rights.

On May 8, 2026, Petitioner filed a Petition for Approval of Compromise of Claim (Petition).

On June 12, 2026, the Court granted Plaintiff's ex parte application to advance this Petition.

On June 30, 2026, Petitioner filed an Amendment to Plaintiff's Petition to Approve Compromise Requesting Permission to Place Funds into Special Needs Pooled Trust (Amendment).

On July 16, 2026, this action first came on for hearing. The Court continued the hearing and requested supplemental information.

Discussion

Petitioner moves for approval of compromise of claim and to place funds into a special needs pooled trust. This Petition is unopposed.

Pursuant to Local Rule 4.115(b), this matter is continued to enable the Probate Court Department to analyze the proposed special needs trust.

Accordingly, Petitioner's petition for approval of compromise of claim is CONTINUED to Friday, September 11, 2026 at 9:30 AM in Dept. P.